

24STCV34416 24STCV34416

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Case Number: 24STCV34416 Hearing Date: June 25, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

IRVIN SINGH,

Plaintiff,

vs.

GENERAL MOTORS, LLC,

Defendant.

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CASE NO.: 24STCV34416

[TENTATIVE] ORDER SUSTAINING DEMURRER; GRANTING
MOTION TO STRIKE

Dept. 506

8:30 a.m.

June 25, 2026

On

October 23, 2025, Plaintiff Irvin Singh filed a first amended complaint ("FAC")
against Defendant General Motors LLC arising from Plaintiff's purchase of an allegedly
defective vehicle.

On

November 11, 2025, Defendant filed a demurrer to the fifth cause of action for Fraudulent
Inducement – Concealment and a motion to strike punitive damages.

DEMURRER

A

demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740,
747.) When considering demurrers, courts
read the allegations liberally and in context, accepting the alleged facts as true. (Nolte v. Cedars-Sinai Medical Center (2015)
236 Cal.App.4th 1401, 1406.)

A. The Fifth Cause of Action is Not Facially
Barred by the Statute of Limitations.

Defendant

argues that the fifth cause of action is barred by the three-year statute of limitations. (Demurrer at pp. 8-10; see Code Civ. Proc., §

338, subd. (d).)

To

sustain a demurrer on the statute of limitations, the running of the statute must appear clearly and affirmatively on the face of the complaint. (Geneva Towers Ltd. Partnership v. City of San Francisco (2003) 29 Cal.4th 769, 781.)

“[I]t is not enough that the complaint might be time-barred. [Citation.]”

(Ibid.)

Plaintiff

alleges that “the running of the limitation periods have been tolled by, inter alia, the following doctrines or rules: equitable tolling, the discovery rule, equitable estoppel, the repair rule, and/or class action tolling (e.g., the American Pipe rule).” (FAC ¶ 22.)

Plaintiff

does not allege any facts for equitable tolling, equitable estoppel, class action tolling so these cannot be bases for tolling.
(See Demurrer at pp. 8-10.) Accordingly,
only the repair rule and Plaintiff’s delayed discovery of Defendant’s concealment is at issue.

“The

general rule is that the statute of limitations begins to run when the wrongful act is done, even though the plaintiff is ignorant of his or her cause of action or of the identity of the wrongdoer.” (Snow v. A. H. Robins Co. (1985) 165 Cal.App.3d 120, 127.) The running of the statute of limitations may be postponed on certain causes of action until the time of discovery of the facts. (Ibid.) “With respect to actions based on fraud, the statute of limitations is tolled whenever plaintiff is able to show the defendant fraudulently concealed facts which would have led him to discover his potential cause of action.” (Id. at pp. 127-128.)

Plaintiff

alleges that on December 27, 2016, he entered into a warranty contract with Defendant. (FAC ¶ 6.) Before Plaintiff purchased the vehicle, Defendant “was well aware and knew that the 8-speed Transmission installed on the Vehicle was defective but failed

to disclose this fact to Plaintiff prior to and at the time of sale and thereafter.” (FAC ¶ 60.)

“Plaintiff discovered Defendant’s wrongful conduct alleged herein shortly before the filing of the complaint” on December 30, 2024. (FAC ¶ 23.)

The

FAC does not facially show that the statute of limitations bars this cause of action. It is not clear from the face of the FAC when

Plaintiff should have discovered that Defendant concealed information about the vehicle’s defects.

The

demurrer is overruled on this ground.

B. The Fifth Cause of Action Does Not Allege
Fraud with Specificity.

Defendant

argues that the fifth cause of action does not allege sufficient facts, including a duty to disclose. (Demurrer at pp. 10-13.)

Fraud

based on concealment requires that “(1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” (Bigler-Engler v. Breg, Inc. (2017) 7 Cal.App.5th 276, 310-311 (Bigler-Engler).)

An

essential element of intentional concealment includes the duty to disclose, which must be based upon a transaction, or a special relationship, between plaintiff and defendant. (Id. at p. 314.) “There are ‘four circumstances in which nondisclosure or concealment may constitute actionable fraud: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts.’” (Id. at p. 311.) “[O]ther than

the first instance, in which there must be a fiduciary relationship between the parties, “the other three circumstances in which nondisclosure may be actionable presuppose[] the existence of some other relationship between the plaintiff and defendant in which a duty to disclose can arise. . . . “[W]here material facts are known to one party and not to the other, failure to disclose them is not actionable fraud unless there is some relationship between the parties which gives rise to a duty to disclose such known facts.” [Citation.]’ [Citation.]” (Hoffman v. 162 North Wolfe LLC (2014) 228 Cal.App.4th 1178, 1187 (Hoffman).) “Even under the strict rules of common law pleading, one of the canons was that less particularity is required when the facts lie more in the knowledge of the opposite party.” (Alfaro v. Community Housing Improvement System & Planning Assn., Inc. (2009) 171 Cal.App.4th 1256, 1384.)

Plaintiff alleges that Defendant knew about the engine defect before the purchase. (E.g., FAC ¶¶ 59-60; see FAC ¶ 61 [describing the defect].) Because of the defect, “has suffered and will continue to suffer actual damages.” (FAC ¶ 71.) Plaintiff did not know about these defects and problems, and Defendant, who had superior knowledge of the defect, did not disclose the defects when Plaintiff purchased the vehicle. (E.g., FAC ¶¶ 60, 64-67.) The allegations are specific enough to allege the information that was concealed and the danger posed. (See Jones v. ConocoPhillips Co. (2011) 198 Cal.App.4th 1187, 1199-1200.)

However, Plaintiff does not allege facts showing the existence of a relationship between the parties that gives rise to a duty to disclose facts. (See Hoffman, supra, 228 Cal.App.4th at p. 1187.) Plaintiff alleges only that Defendant “was in a superior position from various internal sources to know (or should have known) the true state of facts about the material defects contained in vehicles equipped with the 8-speed Transmission.” (FAC ¶ 66.) There are no facts showing why Defendant’s knowledge was exclusive or that Defendant intended to defraud. Indeed, Plaintiff alleges that there were “early consumer complaints about the Transmission Defect,” suggesting that the knowledge was in fact public. (FAC ¶¶ 62, 66.)

Moreover, in a transaction that does not involve fiduciary or confidential relations, the “transaction must necessarily arise from direct dealings between the plaintiff and

the defendant; it cannot arise between the defendant and the public at large.” (Bigler-Engler, supra, 7 Cal.App.5th at pp. 311-312.) Plaintiff alleges no such direct transaction with and direct concealment by Defendant.

The
demurrer is sustained on this ground.

MOTION TO STRIKE

The
court may, upon a motion or at any time in its discretion: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc., § 436, subds. (a)-(b).)

Defendant
moves to strike Plaintiff’s prayer for punitive damages. A plaintiff can recover punitive damages in tort cases where “the defendant has been guilty of oppression, fraud, or malice.” (Civ. Code, § 3294, subd. (a).) “The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. [Citation.]” Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim. [Citation.]” (Grieves v. Superior Court (1984) 157 Cal.App.3d 159, 166, fn. omitted.) Additionally, a plaintiff is not entitled to recover both punitive damages and civil penalties under Song-Beverly. (Troensegaard v. Silvercrest Industries, Inc. (1985) 175 Cal.App.3d 218, 228.)

The
Court concurrently sustains the demurrer to the fraud cause of action, and there are no other specific facts showing oppression or malice.

The
motion to strike is granted.

CONCLUSION

The
demurrer to the fifth cause of action is SUSTAINED.

The
motion to strike is GRANTED.

Plaintiff
has already had an opportunity to amend, and he has not shown how else he can remedy
the FAC's deficiencies. Accordingly, no further
leave to amend is granted.

Defendant
is ordered to file an answer to the remainder of the FAC within 10 days.

Moving
party to give notice.

Parties
who intend to submit on this tentative must send an email to the Court at
indicating intention to submit. If all parties
in the case submit on the tentative ruling, no appearances before the Court are
required unless a companion hearing (for example, a Case Management Conference)
is also on calendar.

Dated this 25th day of June 2026

Hon. Thomas D. Long

Judge of the Superior
Court